lack of diligence and its attempt to obtain multiple physical examinations to which it is not entitled. Substantial justice favors denying the motion.

The Court finds that Defendant has not demonstrated good cause for a continuance under California Rules of Court, Rule 3.1332(c)(6) or (c)(7). Defendant's claimed inability to obtain essential discovery was caused by its own lack of diligence, not circumstances beyond its control. The factors set forth in Rule 3.1332(d) weigh against granting the continuance, particularly the significant prejudice to Plaintiff, the elderly status of Plaintiff, the proximity to the five-year statutory deadline, and Defendant's apparent attempt to manipulate the discovery process. The Court further finds that denial of the continuance will not have the practical effect of denying Defendant a fair hearing.

<u>Ruling</u>

1. Defendant's Motion to Continue Trial is **<u>denied</u>**. The trial shall remain set for November 2, 2026, at 9:00 a.m. in Department 16.

2. Defendant's physical examination of Plaintiff should have already proceeded as scheduled on August 27, 2026, with Dr. Karthikeshwar Kasirajan. The scope of that examination shall be "those parts of the body which may be related to the Examinee's complaints relative to the within action," as originally noticed. Defendant's "Amended" demand served August 21, 2026, is deemed untimely and ineffective.

3. Defendant's Motion to Compel a Second Physical Examination, currently set for hearing on January 20, 2027, is **<u>vacated</u>** as moot in light of this ruling.

4. Each party shall bear their own costs and fees incurred in connection with this motion.

5. Plaintiff shall prepare a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) days from the date of the hearing.

7. 9:00 AM CASE NUMBER: C23-00838
CASE NAME: YOLANDA PAYNE VS. EKSO BIONICS, INC.
***HEARING ON MOTION IN RE: TAX COSTS**
FILED BY: PAYNE, YOLANDA
<u>*TENTATIVE RULING:*</u>

<u>Summary</u>
The Court, having considered Plaintiff Yolanda Payne's Motion to Tax Costs, Defendant Ekso Bionics, Inc.'s Opposition thereto, and all papers and arguments presented, hereby **<u>denies</u>** the motion for the reasons set forth below.

<u>Background</u>
Plaintiff's Complaint alleged seven causes of action, of which four were purely non-FEHA claims: (1) retaliation under Labor Code § 1102.5; (2) retaliation under Labor Code § 6310; (3) retaliation under Labor Code §§ 233 and 246.5; and (4) wrongful termination in violation of public policy. These non-FEHA claims arose from the same nucleus of operative facts as the FEHA claims—namely, allegations that Defendant retaliated against Plaintiff for reporting safety concerns.

On October 16, 2025, this Court entered its order granting Ekso's Motion for Summary Judgment in its entirety, disposing of each of Plaintiff's seven causes of action. On November 7, 2025, this Court then entered Judgment in favor of Ekso, expressly finding that Ekso was “the prevailing party” and that it was thus "entitled to recover its costs pursuant to the code." Accordingly, having obtained a complete defense judgment on all claims asserted by Plaintiff, Ekso is presumptively entitled to recover its allowable costs as a matter of right unless Plaintiff affirmatively demonstrates that particular cost items are not recoverable. (CCP §§ 1032 (b), 1033.5.)

As set forth below, the Court finds that the discovery, depositions, witness preparation, and case management activities undertaken by Defendant were necessary to defend all claims simultaneously and would have been incurred even if Plaintiff had not pled the three FEHA causes of action. Under *Moreno* and *Roman*, *infra*, Defendant is entitled to recover costs attributable to the non-FEHA claims and costs that are inseparable from the defense of those claims. The Court rejects Plaintiff's argument that *Williams* creates a categorical bar to all costs in mixed-action cases.

<u>Analysis</u>

Under Code of Civil Procedure § 1032, a prevailing party is entitled to recover costs as a matter of right. In *Williams v. Chino Valley Independent Fire District* (2015) 61 Cal.4th 97, 99-100, the California Supreme Court held that a prevailing defendant in an action under the Fair Employment and Housing Act (FEHA) may not be awarded fees or costs absent an objective finding that the plaintiff's action was frivolous, unreasonable, or groundless. However, *Williams* addressed a case involving only FEHA claims and expressly did not consider mixed-action cases.

Subsequent Court of Appeal decisions have clarified that in mixed FEHA/non-FEHA cases, the *Williams* limitation applies only to costs incurred solely in the defense of FEHA claims. Under *Moreno v. Bassi* (2021) 65 Cal.App.5th 244, 249 and *Roman v. BRE Properties* (2015) 237 Cal.App.4th 1040, 1057-1058 a prevailing defendant may recover: (1) costs attributable to non-FEHA causes of action; and (2) costs tied to, intertwined with, or inseparable from costs that would have been incurred even if no FEHA claim had been asserted.

Costs are recoverable if they are "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (CCP § 1033.5(c)(2)-(3).) A verified Memorandum of Costs constitutes *prima facie* evidence that the listed costs were necessarily incurred and reasonable in amount. The burden rests on the party seeking to tax costs to identify specific items and demonstrate that each cost is improper, unnecessary, or unreasonable. (CRC Rule 3.1700(b)(2); *612 S. LLC v. Laconic Ltd. P'ship* (2010) 184 Cal.App.4th 1270, 1285.)

<u>1. Filing Fees ($289.10)</u>

The Court finds that the challenged filing fees are recoverable under CCP § 1033.5(a)(1), which expressly allows "[f]iling, motion, and jury fees." To the extent these charges reflect mandatory electronic filing service fees necessary to submit required case management statements and other court papers, they are properly treated as filing costs or allowable in the Court's discretion under § 1033.5(c)(4). These filings were compulsory compliance submissions required irrespective of the nature of the claims and would have been incurred to defend the non-FEHA claims. Plaintiff has not demonstrated that these charges were unreasonable in amount. The motion to tax filing fees is DENIED.

2. Mediation Fees ($4,000.00)
The Court finds that the mediation fees are recoverable in the Court's discretion under CCP § 1033.5(c). Contrary to Plaintiff's assertion that the mediation was "voluntary," the Court ordered the parties to participate in mediation on January 23, 2024, with a deadline of June 24, 2024. Under *Gibson v. Bobroff* (1996) 49 Cal.App.4th 1202, 1207-1208, expenses incurred in connection with a court-ordered mediation may be awarded as costs. Moreover, the mediation addressed all claims arising from the same factual dispute and would have been incurred to resolve the non-FEHA claims even if no FEHA claims had been pled. Plaintiff has not demonstrated that the $4,000 fee was unreasonable in amount. The motion to tax mediation fees is **denied**.

3. Attorney Messenger/Service of Process Fees ($1,275.60)
The Court finds that these charges are recoverable as "fees for service of process" under CCP § 1033.5(a)(4). Defendant has demonstrated that these charges were incurred to serve deposition subpoenas on third-party witnesses Angelina Torres, Christine Hynds, and Debra Wondercheck, who witnesses identified by Plaintiff in her discovery responses. These were not routine attorney convenience charges for deliveries between counsel, which would be barred by *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761. Rather, they were necessary to secure testimony from third-party witnesses and would have been required to defend the non-FEHA claims. The motion to tax service of process fees is **denied**.

4. Record Duplication Costs ($523.18)
The Court finds that these costs are recoverable in the Court's discretion under CCP § 1033.5(c). Defendant has demonstrated that these charges were for obtaining copies of subpoenaed business and medical records maintained under the parties' protective order, which were used in connection with discovery and motion practice. These were not attorney convenience copies but records necessary to evaluate Plaintiff's damages claims and employment history. These costs would have been incurred to defend the non-FEHA claims, and Plaintiff has not demonstrated they were unreasonable in amount. The motion to tax record duplication costs is **denied**.

5. Investigation Fees ($3,250.00)
The Court finds that these charges are recoverable as service-of-process related costs under CCP § 1033.5(a)(4) or, alternatively, as discretionary costs under § 1033.5(c). Defendant has demonstrated that these were not general background investigation expenses barred by § 1033.5(b)(2), but rather skip-tracing and location services necessary to serve deposition subpoenas on third-party witnesses Christine Hynds and Debra Wondercheck, who were witnesses Plaintiff identified as having knowledge of relevant facts. Fees for locating and serving witnesses are properly considered part of "service of process" and are recoverable when reasonably necessary. These costs were incurred to obtain testimony relevant to both FEHA and non-FEHA claims and would have been necessary even if only non-FEHA claims had been pled. Plaintiff has not demonstrated these charges were unreasonable in amount. The motion to tax investigation fees is **denied**.

Burden of Proof
The Court finds that Defendant, as the prevailing party on all claims, is entitled to recover costs under CCP § 1032. The *Williams* limitation applies only to costs incurred solely in defense of FEHA claims, and Defendant is entitled to recover costs attributable to the non-FEHA claims and costs that would have been incurred even if no FEHA claims had been pled.

The Court finds that Plaintiff has failed to meet her burden under CRC Rule 3.1700(b)(2) and *612 S. LLC* to identify specific items and demonstrate that each challenged cost is improper, unnecessary, or unreasonable. Plaintiff's objections are conclusory and unsupported by competent evidence. Defendant's verified Memorandum of Costs constitutes *prima facie* evidence of the necessity and reasonableness of the claimed costs, which Plaintiff has not overcome.

Ruling

1. Plaintiff's Motion to Tax Costs is **denied** in its entirety.
2. Defendant Ekso Bionics, Inc. is awarded costs in the total amount of $25,968.32 as claimed in its Memorandum of Costs filed November 24, 2025.
3. Each party shall bear their own costs and fees incurred in connection with this motion.

8. 9:00 AM CASE NUMBER: C23-00908
CASE NAME: ABDO NASSER VS. DOES 1 TO 50
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF T-MOBILE WEST LLC
FILED BY: MW CELL REIT 1 LLC
TENTATIVE RULING:*

The hearing on MW Cell's Demurrer is **continued to November 25, 2026**, to be heard in concurrently with Cross-Defendants Abdo Nasser and Raja Nasser's Demurrer and Motion to Strike directed toward T-Mobile's Cross-Complaint.

9. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT FILED BY: DROUBI, NAHLA (CONTINUED FROM 3/11/26)**
FILED BY:
TENTATIVE RULING:*

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **granted.** Droubi shall file and serve the second amended cross-complaint within 10 days of the notice of entry of this order.

The Court previously heard Droubi's motion for leave to file a second amended cross-complaint. The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). The Court agreed that this motion was not compliant with rule 3.1324.

This matter was continued to allow Droubi to file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b). The parties were given the chance to file new opposition and reply briefs.

Droubi has now filed a declaration and a copy of the proposed second amended cross-complaint. The Court has reviewed these filings. The Wankens did not file a new opposition opposing